

1 _____ JOINT RESOLUTION NO. _____
2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
5 MONTANA REQUESTING AN INTERIM STUDY OF THE LICENSING STANDARDS, EDUCATION, AND
6 PRACTICES OF PROPERTY MANAGEMENT IN THE STATE; AND REQUIRING THAT THE RESULTS OF
7 THE STUDY BE REPORTED TO THE 70TH LEGISLATURE.

9 WHEREAS, residential and commercial landowners hire property managers to manage landowners'
10 properties throughout the state; and

WHEREAS, to manage these properties, property managers are required to obtain a license that requires education and training approved by the Department of Labor and Industry; and

13 WHEREAS, in 2023, the Department of Labor and Industry was charged with the responsibility of
14 receiving complaints from citizens in the state and with disciplining licensed property managers for violations of
15 professional conduct; and

16 WHEREAS, the Department of Labor and Industry is authorized to create rules and regulations for
17 professional practice with respect to the licensing of property managers, but professional practice is limited in
18 requiring property managers to comply with the responsibilities of the Montana Residential Landlord and Tenant
19 Act and commercial rental contract law in the state; and

20 WHEREAS, the state recognizes the importance of property managers to provide services to both
21 landowners and tenants with respect to the rental of property; and

WHEREAS, these services are received at a cost, and the costs, which are not monitored or regulated,
have affected both landowners and tenants as an increase in rental prices in the state; and

24 WHEREAS, the state has recognized that foreign corporations and foreign investment groups are not
25 required to have licensed and regulated property managers overseeing rental properties, thus reducing the
26 quality of those rental properties.

28 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF

1 THE STATE OF MONTANA:

2 That the Legislative Council be requested to designate an appropriate interim committee or statutory
3 committee, pursuant to section 5-5-217, MCA, or direct sufficient staff resources to:

4 (1) review the current licensing, education, and fee requirements of property managers in
5 Montana;

6 (2) review the conformance of property manager requirements and practice with the Montana
7 Residential Landlord and Tenant Act, the commercial rental laws of Montana, and the property management
8 requirements of foreign corporations and investment groups;

9 (3) examine the current end-user costs charged to landowners and tenants as a result of property
10 management licensing and education requirements; and

11 (4) identify education requirements and practices from other states to evaluate how Montana's
12 statutes align with or differ from those in other jurisdictions and identify best practices that may inform potential
13 legislative changes.

14 BE IT FURTHER RESOLVED, that the committee solicit feedback from stakeholders and relevant
15 parties, including but not limited to property managers, landlords, tenants, tenant unions, attorneys who work in
16 landlord-tenant law, professional organizations in the field of landlord-tenant relations, and housing policy
17 experts in the property management industry.

18 BE IT FURTHER RESOLVED, that if the study is assigned to staff, any findings or conclusions be
19 presented to and reviewed by an appropriate committee designated by the Legislative Council.

20 BE IT FURTHER RESOLVED, that all aspects of the study, including presentation and review
21 requirements, be concluded prior to September 15, 2026.

22 BE IT FURTHER RESOLVED, that the final results of the study, including any findings, conclusions,
23 comments, or recommendations of the appropriate committee, be reported to the 70th Legislature.

24 - END -